

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----X
RONNELL BRADFORD,

Plaintiff,

SUMMONS

-against-

Jury Trial Demanded

THE CITY OF NEW YORK, SGT. PRIMROSE HOUSEN, Shield No. 3406 (Tax Id. No. 915914), Individually and in his/her Official Capacity, LT. PETER GENTILE, Shield No. Unknown, Individually and in his Official Capacity, DET. KEN BAKER, Shield No. 5651 (Tax Id. No. 918726), Individually and in his Official Capacity, P.C.T. KASHENA GRAVES, Individually and in her Official Capacity, and POLICE OFFICERS "JOHN DOE" #1-10, Individually and in their Official Capacity (the name John Doe being fictitious, as the true names are presently unknown),

Plaintiff designates New York County as the place of trial.

The basis of venue is:
CPLR § 504(3)

Defendants.

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To the above-named Defendants:

You are hereby summoned to answer the Complaint in this action, and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiffs' attorney within 20 days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: NEW YORK, NEW YORK
April 24, 2018COHEN & FITCH LLP
Attorneys for Plaintiff
233 Broadway, Suite 1800
New York, N.Y. 10279
(212) 374-9115

TO:

ZACHARY W. CARTER
Corporation Counsel of the City of New York
100 Church Street
New York, New York 10007SGT. PRIMROSE HOUSEN, Shield No. 3406 (Tax Id. No. 915914)
NYPD I.T. Bureau of Investigations
1 Police Plaza, Room 910C
New York, NY 10007

LT. PETER GENTILE, Shield No. Unknown
c/o NYPD
Service address currently unknown

DET. KEN BAKER, Shield No. 5651 (Tax Id. No. 918726)
NYPD I.T. Bureau of Investigations
1 Police Plaza, Room 910C
New York, NY 10007

P.C.T. KASHENA GRAVES
605 Chester St.
Brooklyn, NY 11212

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
RONNELL BRADFORD,

Plaintiff,

-against-

VERIFIED COMPLAINT

Jury Trial Demanded

BASIS FOR VENUE:

CPLR § 504(3)

THE CITY OF NEW YORK, SGT. PRIMROSE
HOUSEN, Shield No. 3406 (Tax Id. No. 915914),
Individually and in his/her Official Capacity, LT. PETER
GENTILE, Shield No. Unknown, Individually and in his
Official Capacity, DET. KEN BAKER, Shield No. 5651
(Tax Id. No. 918726), Individually and in his Official
Capacity, P.C.T. KASHENA GRAVES, Individually and
in her Official Capacity, and POLICE OFFICERS "JOHN
DOE" #1-10, Individually and in their Official Capacity
(the name John Doe being fictitious, as the true names are
presently unknown),

Defendants.

-----X
Plaintiff RONNELL BRADFORD, by his attorneys, COHEN & FITCH LLP, complaining
of the defendants, respectfully alleges as follows:

FACTS

1. Plaintiff RONNELL BRADFORD is an African-American male and has been at all relevant times a resident of Queens County in the City and State of New York.
2. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
3. Defendant, THE CITY OF NEW YORK, maintains the New York City Police Department, duly authorized public authorities and/or police departments, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal

Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, The City of New York.

4. That at all times hereinafter mentioned, the individually named defendants, SGT. PRIMROSE HOUSEN, Shield No. 3406 (Tax Id. No. 915914), LT. PETER GENTILE, Shield No. Unknown (Tax Id. No. Unknown), DET. KEN BAKER, Shield No. 5651 (Tax Id. No. 918726) and POLICE OFFICERS “JOHN DOE” #1-10, (the name John Doe being fictitious, as the true names are presently unknown), were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.

5. That at all times hereinafter mentioned, the individually named defendant KASHENA GRAVES was a police communications technician (“P.C.T.”) for the New York City Police Department and was acting under the supervision of said department and according to her official duties.

6. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

7. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

8. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

9. On or about February 1, 2017, at approximately 8:20 a.m. in the County of New York, City, and State of New York, plaintiff RONNELL BRADFORD was lawfully present in the

vicinity of his place of employment, the Manhattan Psychiatric Center, 600 E. 125th St. New York, NY 10035.

10. At the aforesaid time and place, defendants HOUSEN, GENTILE, and BAKER showed up at plaintiff's place of employment, informed him that he was being arrested, and then placed him under arrest by handcuffing his arms tightly behind his back and began to search his person and effects.

11. At no time on February 1, 2017, did defendants HOUSEN, GENTILE, and/or BAKER, possess probable cause to arrest plaintiff.

12. At no time on February 1, 2017, did defendants HOUSEN, GENTILE, and/or BAKER, possess information that would lead a reasonable officer to believe probable cause existed to arrest plaintiff.

13. At no time on February 1, 2017, did defendants HOUSEN, GENTILE, and/or BAKER, possess probable cause and/or reasonable suspicion to search plaintiff's person or effects nor did they obtain voluntary consent from him to do so.

14. At no time on February 1, 2017, did defendants HOUSEN, GENTILE, and/or BAKER, possess information that would lead a reasonable officer to believe probable cause and/or reasonable suspicion existed to search plaintiff's person or effects.

15. Thereafter, plaintiff was transported by, upon information and belief, defendants HOUSEN, GENTILE, and/or BAKER to a nearby police precinct where he was searched, fingerprinted, photographed, questioned, confined in a holding cell for several hours, and charged with Tampering with Physical Evidence, Criminal Contempt, and Falsely Reporting an Incident. Thereafter, claimant was transported to Central Booking where he was further detained before being released following arraignment.

16. In connection with plaintiff's arrest, defendant HOUSEN and upon information and belief, defendants GENTILE and/or BAKER, filled out false and/or misleading police reports and forwarded them to prosecutors at the New York County District Attorney's Office. Thereafter, defendant HOUSEN and upon information and belief, defendants GENTILE and/or BAKER repeated the aforementioned false and misleading information regarding the facts and circumstances of plaintiff's arrest.

17. Specifically, defendant HOUSEN falsely stated that she investigated whether defendant GRAVES had contacted plaintiff in violation of an order of protection, and that plaintiff's phone records did not show that GRAVES had contacted plaintiff on the dates and times that plaintiff alleged to have received messages from GRAVES. Defendant HOUSEN further falsely claimed that the screen shots of text messages that plaintiff had submitted to her were fabricated. In addition, defendant HOUSEN falsely stated that plaintiff's conduct of making these false reports against GRAVES had violated a valid order of protection ordering him not to engage in any criminal offenses towards GRAVES.

18. However, at no time did plaintiff fabricate any screen shots nor did he make any false and/or fabricated reports about GRAVES contacting him, nor did he commit any crimes or offenses, nor did he behave unlawfully in any way. On the contrary, according to plaintiff's missed-calls log, GRAVES had in fact called plaintiff in violation of the order of protection against her. In addition, GRAVES sent plaintiff several text messages in violation of the order of protection against her. Likewise, when plaintiff reported to the NYPD that GRAVES had contacted him in violation of the order of protection, these reports were truthful and accurate. Thus, plaintiff had not engaged in any criminal offenses against GRAVES – namely, by filing false reports against her – because the reports he filed were not actually false. As such, at no time on February 1, 2017,

(or October 15, 2016 or October 16, 2016) or at any other time prior to or after February 1, 2017, did claimant tamper with physical evidence, falsely report any incidents, or violate any court orders.

19. Further, defendant GRAVES falsely claimed that she did not make or send the aforementioned calls and text messages and used her status and employment with the NYPD to have plaintiff falsely arrested.

20. As a result of the foregoing, plaintiff spent approximately twenty-four (24) hours in custody and made approximately seven (7) court appearances before all charges against him were dismissed in their entirety on or about November 20, 2017.

21. In addition, as a result of the foregoing, plaintiff's employer placed him on administrative leave which, upon information and belief, continued until all charges against him were dismissed in their entirety. Further, plaintiff had to pay for a criminal defense attorney, was deprived the use of his cell phone as it was confiscated from him by the NYPD and held during the pendency of his criminal case and suffered anxiety and emotional distress requiring medical treatment.

22. As a result of the foregoing, plaintiff RONNELL BRADFORD sustained, inter alia, loss of liberty, physical injuries, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of his constitutional rights.

STATE CLAIMS

23. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

24. On or about April 26, 2017 and within (90) days after the claim herein accrued, the plaintiffs duly served upon, presented to and filed with defendant THE CITY OF NEW YORK, a

Notice of Claim setting forth all facts and information required under the General Municipal Law § 50 (e). Thereafter, on or about December 14, 2017, and within (90) days after the claim herein accrued, the plaintiffs duly served upon, presented to and filed with defendant THE CITY OF NEW YORK, an Amended Notice of Claim setting forth all facts and information required under the General Municipal Law § 50 (e).

25. Defendant THE CITY OF NEW YORK has wholly neglected or refused to make an adjustment or payment thereof and more than thirty (30) days have elapsed since the presentation of such claim as aforesaid.

26. Defendant THE CITY OF NEW YORK demanded a hearing pursuant to General Municipal Law § 50-h and said hearing was held on or about August 23, 2017.

27. This action was commenced within one (1) year and ninety (90) days after the causes of action herein accrued.

28. Plaintiff has complied with all conditions precedent to maintaining the instant action.

29. This action falls within one or more of the exceptions as outlined in C.P.L.R. § 1602.

**FIRST CLAIM FOR RELIEF UNDER N.Y. STATE LAW
FALSE ARREST/IMPRISONMENT**

30. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

31. Defendant police officers HOUSEN, GENTILE, and BAKER arrested plaintiff in the absence of probable cause and without a warrant.

32. The aforementioned arrest was based in part on the false allegations provided by defendant GRAVES who is a New York City Police Department employee.

33. As a result of the foregoing, plaintiff was falsely imprisoned, his liberty was restricted for an extended period of time, he was put in fear for her safety, and humiliated and subjected to handcuffing and other physical restraints.

34. Plaintiff was conscious of said confinement and did not consent to the same.

35. The confinement of plaintiff was without probable cause and was not otherwise privileged.

36. As a result of the aforesaid conduct by defendants, plaintiff was subjected to an illegal, improper and false arrest by the defendants and taken into custody and caused to be falsely imprisoned, detained, confined, incarcerated and prosecuted by the defendants in criminal proceedings. The aforesaid actions by the defendants constituted a deprivation of plaintiff's rights.

37. As a result of the aforementioned conduct, plaintiff has suffered physical and mental injury, together with embarrassment, humiliation, shock, fright and loss of freedom.

SECOND CLAIM FOR RELIEF UNDER N.Y. STATE LAW
ASSAULT

38. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

39. Defendants HOUSEN, GENTILE, and BAKER's aforementioned actions placed plaintiff in apprehension of imminent harmful and offensive bodily contact.

40. As a result of defendants' conduct, plaintiff has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment, and humiliation.

THIRD CLAIM FOR RELIEF UNDER N.Y. STATE LAW
BATTERY

41. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

42. Defendant police officers HOUSEN, GENTILE, and BAKER touched plaintiff in a harmful and offensive manner.

43. Defendant police officers HOUSEN, GENTILE, and BAKER did so without privilege or consent from plaintiff.

44. As a result of defendants' conduct, plaintiff has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.

FOURTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS

68. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

69. The aforementioned conduct was extreme and outrageous, and exceeded all reasonable bounds of decency.

70. The aforementioned conduct was committed by defendants HOUSEN, GENTILE, GRAVES, and BAKER while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

71. The aforementioned conduct was committed by defendants HOUSEN, GENTILE, GRAVES, and BAKER while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

72. The aforementioned conduct was intentional and done for the sole purpose of causing severe emotional distress to plaintiff.

73. As a result of the aforementioned conduct, plaintiff suffered severe emotional distress, mental injury, together with embarrassment, humiliation, shock, fright and loss of freedom.

FIFTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW
NEGLIGENT HIRING/TRAINING/SUPERVISION/RETENTION

74. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

75. Defendant CITY OF NEW YORK selected, hired, trained, retained, assigned and supervised all members of its Police Department, including the defendants individually named above.

76. Defendant CITY OF NEW YORK was negligent and careless when it selected, hired, trained, retained, assigned, and supervised all members of its Police Department including the defendants individually named above.

77. Due to the negligence of the defendants as set forth above, plaintiff suffered mental injury, pain and trauma, together with embarrassment, humiliation shock, fright, and loss of freedom.

78. As a result of the foregoing, plaintiff is entitled to compensatory damages and is further entitled to punitive damages against the individual defendants.

SIXTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW
MALICIOUS PROSECUTION

79. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

80. On February 1, 2017, defendants HOUSEN, GENTILE, GRAVES, and/or BAKER commenced a criminal proceeding against plaintiff.

81. Defendants HOUSEN, GENTILE, GRAVES, and/or BAKER lacked probable cause to commence said criminal proceeding against plaintiff.

82. Defendants HOUSEN, GENTILE, GRAVES, and/or BAKER were motivated by actual malice in commencing said criminal proceeding against plaintiff.

83. From February 1, 2017 until November 20, 2017, plaintiff was forced to repeatedly make appearances in Criminal Court to defend himself against the unlawful prosecution initiated by defendants HOUSEN, GENTILE, GRAVES, and/or BAKER.

84. As a result of the malicious prosecution against him, plaintiff spent approximately ten (10) months making court appearances.

85. On or about November 20, 2018, the criminal prosecution against plaintiff was terminated in his favor when the charges against him were dismissed.

86. As a result of the aforementioned conduct, plaintiff suffered mental and physical injury, together with embarrassment, humiliation, shock, fright, and loss of freedom.

FEDERAL CLAIMS

FIRST CLAIM FOR RELIEF **DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983**

87. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

88. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the color of state law.

89. All of the aforementioned acts deprived plaintiff of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

90. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.

91. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and corrections officers, pursuant to the customs,

usages, practices, procedures, and the rules of the City of New York, the New York City Police Department and the New York City Department of Corrections, all under the supervision of ranking officers of said department.

92. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

**SECOND CLAIM FOR RELIEF ARISING
FALSE ARREST UNDER 42 U.S.C. § 1983**

93. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

94. As a result of the aforesaid conduct by defendants HOUSEN, GENTILE, GRAVES, and/or BAKER, plaintiff was subjected to illegal, improper and false arrest by the defendants, taken into custody, and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.

95. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

**THIRD CLAIM FOR RELIEF
DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL
UNDER 42 U.S.C. § 1983**

96. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

97. Defendants HOUSEN, GENTILE, GRAVES, and/or BAKER created false evidence against plaintiff

98. Defendants HOUSEN, GENTILE, GRAVES, and/or BAKER forwarded false evidence and false information to prosecutors in the Kings County District Attorney's office.

99. Defendants HOUSEN, GENTILE, GRAVES, and/or BAKER misled the prosecutors by creating false evidence against plaintiff and thereafter providing false testimony throughout the criminal proceedings.

100. In creating false evidence against plaintiff, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, defendants HOUSEN, GENTILE, GRAVES, and/or BAKER violated plaintiff's constitutional right to a fair trial under the Sixth Amendment and the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

101. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

FOURTH CLAIM FOR RELIEF
MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983

102. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

103. Defendants HOUSEN, GENTILE, GRAVES, and/or BAKER misrepresented and falsified evidence before the New York County District Attorney.

104. Defendants HOUSEN, GENTILE, GRAVES, and/or BAKER did not make a complete and full statement of facts to the District Attorney.

105. Defendants HOUSEN, GENTILE, GRAVES, and/or BAKER withheld exculpatory evidence from the District Attorney.

106. Defendants HOUSEN, GENTILE, GRAVES, and/or BAKER were directly and actively involved in the initiation of criminal proceedings against plaintiff.

107. Defendants HOUSEN, GENTILE, GRAVES, and/or BAKER lacked probable cause to initiate criminal proceedings against plaintiff.

108. Defendants HOUSEN, GENTILE, GRAVES, and/or BAKER acted with malice in initiating criminal proceedings against plaintiff.

109. Defendants HOUSEN, GENTILE, GRAVES, and/or BAKER were directly and actively involved in the continuation of criminal proceedings against plaintiff.

110. Defendants HOUSEN, GENTILE, GRAVES, and/or BAKER lacked probable cause to continue criminal proceedings against plaintiff.

111. Defendants HOUSEN, GENTILE, GRAVES, and/or BAKER acted with malice in continuing criminal proceedings against plaintiff.

112. Defendants HOUSEN, GENTILE, GRAVES, and/or BAKER, misrepresented and falsified evidence throughout all phases of the criminal proceedings.

113. Specifically, defendant HOUSEN falsely stated that she investigated whether defendant GRAVES had contacted plaintiff in violation of an order of protection, and that plaintiff's phone records did not show that GRAVES had contacted plaintiff on the dates and times that plaintiff alleged to have received messages from GRAVES. Defendant HOUSEN further falsely claimed that the screen shots of text messages that plaintiff had submitted to her were fabricated. In addition, defendant HOUSEN falsely stated that plaintiff's conduct of making these false reports against GRAVES had violated a valid order of protection ordering him not to engage in any criminal offenses towards GRAVES.

114. However, at no time did plaintiff fabricate any screen shots nor did he make any false and/or fabricated reports about GRAVES contacting him, nor did he commit any crimes or offenses, nor did he behave unlawfully in any way. On the contrary, according to plaintiff's missed-calls log, GRAVES had in fact called plaintiff in violation of the order of protection against her. In addition, GRAVES sent plaintiff several text messages in violation of the order of protection against her. Likewise, when plaintiff reported to the NYPD that GRAVES had contacted him in violation of the order of protection, these reports were truthful and accurate. Thus, plaintiff had not engaged in any criminal offenses against GRAVES – namely, by filing false reports against her – because the reports he filed were not actually false. As such, at no time on February 1, 2017, (or October 15, 2016 or October 16, 2016) or at any other time prior to or after February 1, 2017, did claimant tamper with physical evidence, falsely report any incidents, or violate any court orders.

115. Further, defendant GRAVES falsely claimed that she did not make or send the aforementioned calls and text messages and used her status and employment with the NYPD to have plaintiff falsely arrested.

116. Notwithstanding the perjurious and fraudulent conduct of defendants, the criminal proceeding against plaintiff was dismissed in its entirety on or about November 20, 2018.

117. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, he lost wages, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

FIFTH CLAIM FOR RELIEF
MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983

118. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

119. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

120. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:

- i. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics; and,
- ii. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and,
- iii. fabricating evidence in connection with their prosecution in order to cover up police or NYPD employee misconduct; and,
- iv. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing and regardless of probable cause, for the purpose of obtaining overtime compensation; and,
- v. failing to take reasonable steps to control and/or discipline police officers who lie and/or commit perjury in order to cover up police misconduct and/or inflate arrest statistics.

121. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of the plaintiff.

122. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the plaintiff as alleged herein.

123. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the plaintiff as alleged herein.

124. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the plaintiff's constitutional rights.

125. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the plaintiff's constitutional rights.

126. The acts complained of deprived the plaintiff of his right:

- A. Not to be deprived of liberty without due process of law;
- B. To be free from seizure and arrest not based upon probable cause;
- C. Not to have summary punishment imposed upon him; and
- D. To receive equal protection under the law.

WHEREFORE, plaintiff respectfully requests judgment against defendants as follows:

- i. an order awarding compensatory damages in an amount to be determined at trial;
- ii. an order awarding punitive damages in an amount to be determined at trial;
- iii. reasonable attorneys' fees and costs; and
- iv. directing such other and further relief as the Court may deem just and proper, together with attorneys' fees, interest, costs and disbursements of this action.

Dated: New York, New York
April 24, 2018

BY: _____/S_____
GERALD COHEN
JOSHUA FITCH
ILYSSA FUCHS
COHEN & FITCH LLP
Attorneys for Plaintiff
233 Broadway, Suite 1800
New York, N.Y. 10279
(212) 374-9115

ATTORNEY'S VERIFICATION

ILYSSA S. FUCHS, an attorney duly admitted to practice law in the Courts of the State of New York, shows:

That she is a member of the law firm of COHEN & FITCH, LLP the attorneys for Plaintiff RONNELL BRADFORD in the within entitled action

That your deponent has read the foregoing **VERIFIED COMPLAINT** and knows the contents thereof, and that the same is true to her own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters, she believes it to be true.

That the source of the deponent's information is investigation and records in the file.

That the reason why the verification is made by deponent and not by the Plaintiff is that the Plaintiff is not within the county wherein deponent maintains her office.

Deponent affirms that the foregoing statements are true under the penalties of perjury.

Dated: New York, New York
April 24, 2018

_____/S_____
Ilyssa S. Fuchs